IT is hereby notified that the Judicial Service Commission has, in terms of section 5(1) of the Judicial Service Act [*Chapter 7:18*], made the following regulations with the concurrence of the Minister of Justice, Legal and Parliamentary Affairs:—

1. These regulations may be cited as the Judicial Service (Amendment) Regulations, 2023 (No. 2).

2. Section 12 ("Transfer") of the Judicial Service (Amendment) Regulations, 2015, published in Statutory Instrument 30 of 2015 (hereinafter called "the principal regulations"), is amended by the repeal of subsection (7) and the substitution of—

"(7) A member of the Commission who wishes to join another approved service shall with the approval of the Commission and upon request by the approved service be transferred and may opt to continue with his or her pension benefits.".

3. Section 49 ("Determination of allegation of misconduct") of the principal regulations is amended by the deletion of "On receiving the documents referred to in section 48(7), the Disciplinary Authority may" and the substitution of "On receiving the documents referred to in section 48(6), the Disciplinary Authority may".

4. Section 55 ("Discharge of members on the grounds of abscondment, imprisonment, detention, restriction or deportation'") of the principal regulations is amended by the insertion of the following proviso to paragraph (e)—

"Provided that a member may make written representations addressed through the Secretary showing cause why the discharge on the grounds of abscondment, imprisonment, detention, restriction or deportation should not be effected, within 14 days of receipt of the notification of such discharge.".

Supplement to the Zimbabwean Government Gazette dated the 26th May, 2023.
Printed by the Government Printer, Harare.

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.